

**CHAPTER cxxi.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Inverness Harbour. A.D. 1911.
—
[18th August 1911.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Inverness Harbour Order Confirmation Act 1911. Short title.

A.D. 1911.

SCHEDULE.

INVERNESS HARBOUR.

Provisional Order to alter the constitution of the Trustees of the Harbour of Inverness and the method of electing Trustees to authorise the Trustees to construct works to confer further powers on the Trustees with respect to tolls rates and charges and the borrowing of money to confer powers on the Town Council of the Royal Burgh of Inverness with respect to levying a special harbour rate the granting of a guarantee and other matters and for other purposes.

WHEREAS by the Act 48 George III. Chapter 41 (in this Order called "the Act of 1808") the magistrates and council of Inverness and their successors in office were authorised to erect a new pier or quay on the bank of the River Ness and to deepen widen scour and cleanse the harbour of Inverness and the River Ness and to carry out the other works therein authorised:

And whereas by the Inverness Harbour Act 1847 (in this Order called "the Act of 1847") the trustees of the harbour of Inverness (in this Order called "the existing trustees") were constituted and incorporated for the management of the port and harbour of Inverness (in this Order called "the harbour") and for carrying into effect the required improvements thereon to continue the operations authorised by the Act of 1808 and to construct additional works and the said constitution has not since been altered:

And whereas by the Inverness Harbour Order 1883 (in this Order called "the Order of 1883") confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1883 the existing trustees were authorised to construct a new quay wall and other works and to levy the rates and dues set forth in the schedule annexed to the said Order:

And whereas the existing trustees were by the Act of 1847 authorised to borrow a sum not exceeding twenty thousand pounds and by the Order of 1883 to borrow an additional sum

not exceeding ten thousand pounds for the execution of the works thereby authorised and the whole sums borrowed under the authority of the Act of 1847 and the Order of 1883 have been repaid : A.D. 1911.

And whereas by the Inverness Harbour Act 1899 (in this Order called "the Act of 1899") the existing trustees were authorised to borrow an additional sum not exceeding forty thousand pounds on the security of the rates leviable under the Order of 1883 and the Act of 1899 and of the property and undertaking of the existing trustees of which twenty-four thousand and seventeen pounds eleven shillings and eightpence was the sum borrowed and the amount now due and owing by the existing trustees is twenty-one thousand nine hundred and eighty-seven pounds fourteen shillings and eightpence the whole of which sum is now due and owing to the bankers of the Trustees :

And whereas by the Act of 1899 the existing trustees were authorised to construct new quays and other works and the provost magistrates and town council of Inverness (in this Order called "the Corporation") were authorised to advance by way of loan to the existing trustees such sum or sums of money as the existing trustees were by law for the time being or might be by law authorised to borrow or re-borrow and be desirous of borrowing from the Corporation upon the security of any property rates assessments rents revenues or funds which the existing trustees should be authorised to charge for the repayment of money borrowed :

And whereas it is expedient to alter and amend the constitution of the existing trustees and the qualification of trustees and electors of trustees and the method of electing and appointing trustees and to constitute and incorporate a body of new trustees (in this Order called "the Trustees") for the purposes of the harbour and to transfer to and vest in the Trustees the undertaking rights and powers of the existing trustees in the manner herein-after provided :

And whereas it is necessary in order to meet the increasing trade and requirements of the port of Inverness that additional harbour accommodation and especially a harbour for steam drifters and other fishing vessels should be provided and that the navigable channel of the River Ness should be deepened

A.D. 1911. and it is expedient that power should be granted to the Trustees to carry out and execute the works herein-after mentioned and to acquire lands for the purposes thereof:

And whereas it is expedient that the Trustees should be authorised to borrow moneys for the execution of the works by this Order authorised and for the general purposes of their undertaking and for the repayment of the money borrowed under the authority of the Act of 1899 and remaining unpaid as aforesaid and for the other purposes of the harbour undertaking to which capital is properly applicable:

And whereas it is expedient that the Corporation should be authorised to guarantee as and by way of collateral security as herein-after provided such sum or sums and on such conditions as are herein-after prescribed towards the payment of the annual interest and instalments of principal of the moneys to be borrowed for the purposes of this Order or under the powers of this Order and to levy a rate for the purposes of the said guarantee:

And whereas it is expedient that some of the provisions of the Act of 1847 the Order of 1883 and the Act of 1899 should be repealed varied and amended and that the Trustees should be authorised to levy and recover new and additional tolls rates dues and charges as herein-after provided:

And whereas it is expedient to make such other provisions as this Order contains:

And whereas plans and sections showing the lines situation and levels of the works authorised by this Order and the lands and property proposed to be acquired for the purposes thereof and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and property which may be taken under the powers of this Order were duly deposited with the principal sheriff-clerk for the county of Inverness and are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:— A.D. 1911.

Preliminary.

1. This Order may be cited as the Inverness Harbour Order 1911 and this Order and the Act of 1808 (so far as applicable to the harbour) the Act of 1847 the Order of 1883 and the Act of 1899 may for all purposes be cited together as the Inverness Harbour Acts 1808 to 1911 and this Order shall commence and have effect from and after the date of the passing of the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order."

Short title
and com-
mencement
of Order.

2. The following Acts and parts of Acts (except where expressly varied by or inconsistent with this Order) are incorporated with and form part of this Order (that is to say):—

Incorporation of
general Acts.

The Lands Clauses Acts:

The Harbours Docks and Piers Clauses Act 1847 except the sections with respect to the construction of works for the accommodation of the officers of Customs with respect to lifeboats with respect to keeping a tide and weather gauge (unless the Trustees shall be required by the Board of Trade to provide a lifeboat and tide and weather gauge) with respect to buoys lighthouses and beacons and with respect to the police of the harbour dock or pier and except sections 22 25 and 26:

The Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during construction thereof and other interference therewith:

And the expression "company" or any like expression in the incorporated Acts means the Trustees the word "railways" or any like expression means the works authorised by this Order and the words "centre of the railway" mean any part of the works authorised by this Order and the expression "the special Act" means this Order:

Provided that the following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions "packet boat" and "Post Office packet" mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office

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Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act. Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Interpretation.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Inverness Harbour Acts or any of them have the same respective meanings. And the expressions—

"The Act of 1808" means the Act 48 George III. cap 41 intituled "An Act for building a bridge over the River Ness at Inverness widening certain streets improving the present harbour extending the royalty supplying the inhabitants with water regulating the police and lighting the streets of the said burgh";

"The Act of 1847" means the Inverness Harbour Act 1847;

"The Order of 1883" means the Inverness Harbour Order 1883;

"The Act of 1899" means the Inverness Harbour Act 1899;

"The Inverness Harbour Acts" means the Act of 1808 the Act of 1847 the Order of 1883 and the Act of 1899 so far as the same remain in force and are not repealed or altered by this Order;

"The harbour" means the port and harbour of Inverness;

"The existing trustees" means the trustees incorporated by the Act of 1847;

"The Trustees" means the Trustees of the harbour incorporated by this Order;

"The burgh" means the royal burgh of Inverness;

"The Corporation" means the provost magistrates and councillors of the burgh;

"The collector" means the collector of dues and rates appointed by the Trustees;

"The harbour-master" means the harbour-master appointed by the Trustees;

"The clerk" means the clerk to the Trustees;

“The town hall” means the town hall of the burgh;

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“The sheriff” means the sheriff of Inverness Elgin and Nairn or his substitute at Inverness.

4. The Order and Acts specified in Schedule A to this Order so far as such Order and Acts are unrepealed at the commencement of this Order shall be and the same are hereby repealed to the extent mentioned in the third column of that schedule.

Repeal of
Acts.

Constitution Qualification and Election of Trustees.

5. Subject to the provisions of the section of this Order of which the marginal note is “Existing trustees to act until completion of first election” the power and duty of carrying into effect the provisions of the Inverness Harbour Acts and of this Order shall be vested in and performed by a body of Trustees consisting of the provost of the burgh for the time being and seven other members of the town council of the burgh together with seven other persons to be elected as hereinafter provided. The said provost members of the town council and persons shall be a body corporate under the name and style of “The Trustees of the Harbour of Inverness” with perpetual succession and a common seal and shall have power to sue and be sued and to purchase take hold use lease and dispose of lands and other property for the purposes of the harbour of the Inverness Harbour Acts and of this Order and shall have all the other powers and privileges of a body corporate and all deeds and instruments to be made and granted by the Trustees shall be valid and effectual if subscribed by any two of their number and the clerk and sealed with the common seal of the Trustees.

Harbour
Trustees in-
corporated.

6. The Trustees shall be appointed and elected and shall retire from office at the times following:—

Trustees
how chosen.

(1) The provost of the burgh shall on his election as provost become ex-officio a Trustee and shall remain a Trustee while he holds the office of provost:

(2) Seven other persons members of the town council hereinafter called “council representatives” shall be appointed by the Corporation at the annual statutory meeting of the Corporation for the election of magistrates in November one thousand nine hundred and eleven and such representatives shall respectively retire from office as council representatives on the expiration

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of their respective terms of office as members of the Corporation and the Corporation shall at the said annual statutory meeting in November in every year after November one thousand nine hundred and eleven appoint council representatives to fill up the places of the retiring council representatives. Provided always that a council representative retiring at the expiration of his term of office as a member of the Corporation shall be eligible for re-appointment as a council representative if he is again elected a member of the Corporation. Provided also that if a council representative ceases from any cause to be a member of the Corporation he shall thereupon cease to be one of the council representatives and the casual vacancy thereby created shall be filled up by the Corporation in the manner herein-after provided :

- (3) Four persons herein-after called "Traders' Trustees" shall be elected by persons qualified as provided in the section of this Order the marginal note of which is "Qualification of Traders' Trustees electors"; and
- (4) Three persons herein-after called "Municipal Trustees" shall be elected by the persons qualified as provided in the section of this Order the marginal note of which is "Qualification of Municipal Trustees electors":
- (5) The election of the Traders' Trustees shall take place upon the third Monday of November one thousand nine hundred and eleven and upon the third Monday of November in every third year thereafter :
- (6) On the third Monday of November one thousand nine hundred and fourteen and on the third Monday of November in every third year thereafter the four Traders' Trustees and the three Municipal Trustees shall go out of office but shall if duly qualified be eligible for re-election.

Qualification
of Traders'
and Muni-
cipal Trustees.

7. Every person whose name appears on the register of persons entitled to vote in the election of town councillors for the burgh and who is entitled to vote in such election shall be qualified to be elected as one of the Traders' Trustees or of the Municipal Trustees.

8.—(1) The persons qualified to be electors of the Traders' Trustees shall be as follows Every person residing or having his place of business within the municipal boundaries of the burgh for the time being who during the year ending the thirtieth day of September immediately preceding the election of Traders' Trustees shall have paid either as principal or as agent for any person residing beyond the said municipal boundaries of the burgh the sum of ten shillings or upwards of dues or rates leviable under this Order or under the Inverness Harbour Acts in respect of vessels or goods shall be qualified to vote in the election of Traders' Trustees Provided that no such agent shall be entitled whether on behalf of himself or as agent for any other person to more than one vote for each Traders' Trustee to be elected and that no principal shall be entitled to be represented by more than one agent for the purposes of such election and in case any principal employs more than one agent then the agent paying the largest amount in dues and rates on behalf of such principal shall if the said amount is ten shillings or upwards be entitled to vote at such election and if two or more agents have paid the same amount of dues or rates on behalf of the same principal then it shall be decided by lot which of such agents shall be entitled to vote and such lot shall be drawn or decided in such manner as the clerk may determine.

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Qualification
of Traders'
Trustees
electors.

(2) Every person residing or having his place of business within the municipal boundaries of the burgh for the time being who receives goods merchandise wares or commodities whatsoever imported into the harbour in respect of which the freight including dues or rates leviable under the Inverness Harbour Acts or this Order shall have been paid by the consignor or by any person other than the consignee shall be deemed for the purpose of qualifying as an elector of the Traders' Trustees to have paid to the Trustees directly the dues or rates which are leviable in respect of such goods merchandise wares or commodities and every such person who receives such goods merchandise wares or commodities as aforesaid shall be deemed to be a person paying dues or rates within the meaning of this Order.

9. On or before the twenty-fourth day of October one thousand nine hundred and eleven and on or before the same date in every third year thereafter the Trustees shall cause a list specifying the names and designations of the persons qualified

Trustees to
make up a
register of
electors of
Traders'
Trustees.

A.D. 1911. to be electors of Traders' Trustees as before mentioned to be made up and affixed in some place accessible to the public within the office of the clerk or in some conspicuous place on the outside thereof and any person claiming to be an elector of Traders' Trustees whose name shall have been omitted from such list may at any time before the first day of November following apply to the Trustees who shall thereupon if they find such person entitled to be an elector of Traders' Trustees cause the name of such person to be added to the list and such list with the additions if any so made shall be certified by the clerk and shall be deemed to be the register of electors of Traders' Trustees under this Order.

Trustees to
keep books
showing
payers of
rates and
rates paid.

10. For the purpose of making up the register of persons qualified to be electors of Traders' Trustees as herein-before prescribed the Trustees shall cause to be entered in some book or books kept by them the name and designation of every person paying dues or rates leviable under the Inverness Harbour Acts or this Order and the total amount of dues or rates paid by such persons respectively for the year ending the thirtieth day of September immediately preceding the day of election which book or books shall be open to inspection at all times during the hours of business Provided always that no single item of dues or rates paid by or on behalf of any person at any one time of a less amount than threepence shall be computed or taken into account on entering a payment of dues or rates in the said book or books.

Owners or
agents for
owners of
vessel com-
pounding
for rates to
deliver list
to clerk.

11. The owner or owners or agent or agents for the owner or owners of any steamer or other vessel compounding with the Trustees for dues or rates shall on or before the seventeenth day of October one thousand nine hundred and eleven and on or before the same date in every third year thereafter deliver to the clerk a list of all persons from whom he or they shall have collected sums for or on account of the harbour dues or rates or as a composition for dues or rates with the amount so collected during the year ending the thirtieth day of September immediately preceding together with a list of all persons who during the same period shall have received goods merchandise wares or other commodities whatsoever imported into the harbour on which the freight including dues or rates leviable under the Inverness Harbour Acts or this Order shall have been paid by the consignor or by any person other than the consignee with

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the amounts of dues or rates which are leviable or have been paid in respect of such goods merchandise wares or commodities and such persons for the purpose of qualifying as electors of Traders' Trustees shall be deemed to have paid such sums to the Trustees directly Provided always that the Trustees shall be entitled at any time to require evidence that the persons named in the said list did actually pay the said sums set opposite their respective names for or on account of dues or rates or did receive the goods merchandise wares or commodities in respect of which they are deemed to have paid dues or rates and any person making a false return shall be liable to a penalty not exceeding five pounds.

12. No person shall be entitled to vote at any election of Traders' Trustees unless his name is on the register of electors of Traders' Trustees and subject to the provisions of this Order every person whose name is on such register shall be entitled to vote.

Right to vote
determined
by register.

13. Where dues or rates shall be paid by joint owners of ships or by a company consisting of two or more partners it shall be lawful for such joint owners or company to intimate in writing to the clerk the name or names of any one or more of the joint owners or partners or in the case of an incorporated company (including a corporation) the name or names of any one or more of the actual managers or directors or of the partners of a firm who are managers on whose behalf such payment shall be deemed to have been made and such payments shall be deemed to have been made accordingly and each such person shall be qualified to be an elector of Traders' Trustees in respect thereof in the same manner as if such payments had been made by him as an individual. Provided that the amount of dues or rates paid by such joint owners or company shall be sufficient to give the qualification of at least ten shillings to each such nominee And provided further that in the case of joint owners of a single ship there shall not be named more than two joint owners and in the case of a company owning only one ship there shall not be named more than two partners or actual managers or directors of such company and in the case of any other joint owners or company there shall not be named more than five partners or actual managers or directors of such company Provided that no person shall be qualified to be an elector of Traders' Trustees in virtue of the provisions of

Qualification
of joint
owners and
partners and
companies.

A D. 1911. this section unless he resides or has a place of business within the municipal boundaries of the burgh.

"Person"
to include
female.

14. The word "person" as used in this Order shall for all purposes connected with and having reference to the right to vote in the election of Traders' Trustees and the qualification to be elected a Traders' Trustee be held to include any female not married or any female married but carrying on business in her own name.

Names of
candidates to
be intimated
to clerk.

15. No person shall be elected to the office of a Traders' Trustee unless the name of such person shall have been intimated to the clerk on or before four of the clock of the afternoon of the Monday immediately preceding the day of election and the clerk shall on or before the Friday immediately preceding the day of election cause public notice to be given as herein-after provided of the names of all persons so intimated to him and the intimation to the clerk shall be in the form set forth in Schedule B to this Order or as near thereto as circumstances admit and shall be signed by the proposer and seconder and the notice by the clerk shall be in the form set forth in Part I. of Schedule C to this Order or as near thereto as circumstances admit and such notice shall be affixed to the door of the town hall and in the event of the clerk not receiving intimation as herein-before provided of the names of a sufficient number of persons to supply the place of the Traders' Trustees to be elected or going out of office or in the event of the said vacant places not being filled up from any cause whatsoever then and in either of those events the same procedure shall be adopted as is herein-after in this Order appointed to be followed in the case of a failure of the electors of Traders' Trustees to make a valid election Provided that in such events the intimation to the clerk of the name of the person or persons proposed for election shall be given on or before four of the clock of the afternoon of the Monday immediately preceding the date fixed for the election and the clerk shall give notice as is herein-before directed Provided also that in all cases any intimations so made to the clerk may be competently withdrawn by giving notice of withdrawal before four of the clock of the afternoon of the Thursday immediately preceding the day of election and such notice of withdrawal shall be signed by the person nominated and proposed for election and by his proposer or seconder or shall be signed

by both his proposer and seconder but no such withdrawal shall be competent if the effect of such withdrawal would be to reduce the number of candidates proposed to less than the number of Traders' Trustees falling to be elected.

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16. Where at any election of Traders' Trustees the number of persons whose names have been intimated to the clerk under the provisions of the immediately preceding sections as persons proposed for election as Traders' Trustees does not exceed the number of the vacancies to be supplied at the election the clerk shall in the public notice to be given by him as herein-before provided of the names of the persons so intimated to him notify that in respect the number of persons proposed for election does not exceed the number of vacancies to be supplied at the election there will be no poll and shall further declare that the persons so proposed will on the day of election be deemed to be elected as Traders' Trustees and such notification may be made by an addition in the form set forth in Part II. of Schedule C to this Order or in similar terms to the notice herein-before required and on the day of election the persons so proposed shall accordingly be deemed to be duly elected as Traders' Trustees in the same manner as if they had been elected under the provisions of this Order and every such election of Traders' Trustees under the provisions of this Order shall be in all respects valid and notice thereof shall be given by the clerk to the persons elected.

Election
without poll
where num-
ber of per-
sons pro-
posed does
not exceed
vacancies.

17. The following provisions shall have effect with respect to the election of Traders' Trustees:--

Mode of
conducting
election of
Traders'
Trustees.

- (1) In the event of more than four persons being nominated for election as Traders' Trustees the clerk shall by notice to be affixed outside the town hall give public notice that an election by ballot will take place on the third Monday of November between the hours of ten of the clock in the forenoon and two of the clock in the afternoon in a place or places to be named in such notice and he shall cause ballot papers to be printed and other arrangements made for conducting the poll in like manner as a poll at a contested municipal election:

- (2) The returning officer shall be the provost of the burgh for the time being or some person appointed by him

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and the returning officer shall appoint and may pay such officers and clerks as may be necessary for conducting the poll:

(3) At the close of the poll the ballot box or boxes shall be opened and the ballot papers and votes counted and the result of the poll declared all in the manner provided in the case of a contested municipal election:

(4) The four persons who receive the largest number of votes shall be declared by the returning officer to be duly elected as Traders' Trustees under this Order Provided that in the case of an equality in the number of votes the returning officer shall have a casting vote or in the event of more than two persons having an equality in the number of votes the returning officer shall have the number of casting votes necessary to determine which of such persons shall be elected.

Persons not
to give more
than one
vote nor to
vote without
being
entitled.

18. At each election of Traders' Trustees each elector shall be entitled to give one vote and no more for each trustee to be elected and to give one vote and no more for any one candidate and if any person shall act contrary to the foregoing provisions of this section or shall vote without being entitled to do so according to the provisions of this Order or falsely assume to act in the name or on the behalf of any person entitled to vote he shall for every such offence be liable to a penalty not exceeding twenty pounds.

In case of
failure to
elect
Traders'
Trustees.

19. In case of the failure at any time of the electors to make a valid election in accordance with the provisions of this Order of persons duly qualified to be elected as Traders' Trustees the Trustees shall within six weeks after such failure has been ascertained cause an election to be held of such persons according to the method herein-before appointed to be observed with respect to the triennial elections of Traders' Trustees and the persons to be so elected shall in respect of continuance in office be on the same footing as if their election had taken place on the third Monday of November immediately preceding the date thereof.

Expenses of
elections.

20. The expense of making up the register of electors herein-before directed to be made up for the purposes of

elections of Traders' Trustees and the expense of advertising the elections and printing notices lists and registers and all other expenses attending the elections shall be defrayed out of the revenues of the Trustees. A.D. 1911.
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21. Every person whose name appears on the register of persons entitled to vote in the election of town councillors for the burgh and who is entitled to vote in such election shall be qualified to vote in the election of Municipal Trustees. Qualification
of Municipal
Trustees
electors.

22.—(1) The election of Municipal Trustees shall take place every third year commencing with the year one thousand nine hundred and eleven on the same day and as nearly as may be in the same manner in the same place and with the same returning and presiding officers and clerks as the election of town councillors for the burgh or if there is a contested election for Municipal Trustees but there is no contested election for town councillors as if there were a contested election for town councillors. Election of
Municipal
Trustees.

(2) The expenditure incurred in the election of Municipal Trustees as ascertained and apportioned by agreement between the Corporation and the Trustees or failing agreement by the sheriff shall be a charge upon the revenues of the harbour and shall be paid to the Corporation by the Trustees.

(3) The term of office of Municipal Trustees shall commence on the third Monday of November in the year of their election.

(4) The enactments regulating the election of town councillors shall with the necessary variations and subject to the provisions of this Order extend and apply to the election of Municipal Trustees.

(5) It shall be the duty of the Corporation to make due provision for the election of the Municipal Trustees.

23. Any Trustee may resign office at any time upon giving the clerk not less than three weeks' written notice of such intention. Trustees
may resign
office.

24. If any Trustee die or decline office resign become disqualified or incompetent to act or cease to be a Trustee from any other cause than that of going out of office in regular Occasional
vacancies.

A.D. 1911. — course every such vacancy shall be filled up in the manner following (that is to say):—

(1) In the case of a council representative the clerk shall intimate the vacancy to the Corporation who shall as soon as may be thereafter appoint a member of the Corporation to fill the vacancy and such member shall continue in office until the expiration of his term of office as a member of the Corporation:

(2) In the case of a Traders' Trustee or a Municipal Trustee the Trustees shall elect a person duly qualified in his stead and the Trustee so substituted shall continue in office for the same period as the person in whose place he is elected would in ordinary course have continued in office and thereafter he shall go out of office but shall if duly qualified be eligible for re-election.

Disqualifi-
cation of
Trustees.

25. Every person who after his becoming or being elected or appointed one of the Trustees shall accept or hold any office or place of profit under the Trustees or participate in the profits of any work done by order of the Trustees or be concerned or participate in the profits of any contract entered into with the Trustees shall thenceforth cease to be a Trustee and his office shall thereupon become vacant Provided always that no Trustee shall vacate his office by reason of his being a shareholder or member (other than a director) of any joint stock company with which the Trustees may enter into any contract or by reason of his being interested in any loan of money to the Trustees and no such contract or loan shall be void or voidable by either of such reasons Provided also that no Trustee shall be entitled to vote on any question relating to the execution of the Inverness Harbour Acts or this Order or the affairs of the Trustees wherein such company of which he is a shareholder or member is interested or on any question connected therewith or on any question relating to any such loan or on any question in which he is personally concerned and if he shall so vote his vote shall not be counted and he shall be liable to a penalty not exceeding twenty pounds.

Trustees not
disqualified
from acting
as magis-
trates.

26. No Trustee shall by reason of his holding such office be disqualified from acting as a magistrate sheriff justice of the peace or a magistrate or judge of any police court with reference

to the payment of any rate or levying of any penalty under the Inverness Harbour Acts or this Order or in any matter relating to the execution of the Inverness Harbour Acts or this Order. A.D. 1911.

27. Any person being incapacitated or not duly qualified to act or after having become disqualified who shall wilfully act as one of the Trustees shall for every such offence be liable to a penalty not exceeding fifty pounds and such penalty may be recovered by any person with full costs of suit in any competent court. Nevertheless all acts done by any person being incapacitated not duly qualified or disqualified as one of the Trustees previously to his conviction for such offence shall be as valid as if such person had been duly qualified. Penalty on unqualified persons acting as Trustees.

28. Notwithstanding any vacancy or vacancies in the office of Trustee or deficiency in the number of Trustees whether occasioned by any failure to appoint the council representatives or to elect Traders' Trustees or Municipal Trustees or any of their number or by reason of the fact of a vacancy from any other cause in the number of Trustees or members of committee the Trustees for the time being or their committee shall be competent to act and all their proceedings shall be as legal and valid as if no vacancy existed and on the expiration of the term of office of any of the Trustees they shall continue competent to act until their successors are elected and come into office. Trustees to act notwithstanding vacancy.

29. The power and duty of carrying into effect the provisions of the Inverness Harbour Acts and this Order shall until the first appointment and election of the Trustees be vested in and performed by the existing trustees in office immediately previous to the commencement of this Order who during the said period shall be the Trustees with all the duties powers and rights and privileges conferred on the Trustees by this Order. Existing Trustees to act until completion of first election.

Meetings and other Proceedings of Trustees.

30. The Trustees shall hold their first general meeting on the second Wednesday following the first election of Traders' Trustees at twelve of the clock noon within the town hall or some other convenient place within the burgh. First meeting of Trustees.

31. The meetings of the Trustees shall after such first general meeting be held monthly or oftener as the Trustees Monthly and annual meetings.

A.D. 1911. shall see fit on such day and at such hour and place as they shall from time to time appoint and they shall hold an annual general meeting upon the second Wednesday following the third Monday of November in each year.

Special
meetings.

32. The Trustees may hold special meetings and the chairman of the Trustees or any five or more of the Trustees may require a special meeting to be held and may direct the clerk to call such meeting but no meeting shall be held unless not less than twenty-four hours' previous notice thereof be given and such notice shall specify the object or objects for which such meeting is called. Provided always that in cases of emergency the clerk may call a special meeting on one hour's notice given to the Trustees in writing stating the object of the meeting. No business shall be done at any special meeting other than that for which the meeting shall have been called.

Notices of
meetings.

33. All notices of any meeting of the Trustees shall be given by the clerk and shall be in writing or in print or partly in writing and partly in print and shall be delivered at or transmitted through the Post Office addressed to the usual place of abode or place of business of each of the Trustees and every notice shall specify the time and place of the meeting and the object or objects for which such meeting is called.

Election of
chairman.

34. At the first general meeting of the Trustees under this Order and at the annual general meeting in each subsequent year the Trustees shall choose one of their number to be chairman during the immediately ensuing year until the next annual general meeting and in the event of the chairman so chosen being absent from any meeting one of the other Trustees shall be chosen to be chairman of the meeting and at all meetings the presiding chairman shall in case of equality of votes have a second or casting vote.

Quorum of
Trustees.

35. At all meetings of the Trustees five shall be a quorum and all powers vested in the Trustees may be exercised by such quorum.

Adjourn-
ment of
meetings.

36. The Trustees (whether more than or less than a quorum) present at any meeting of the Trustees or the clerk if no Trustee be present may adjourn such meeting to another day at the same or any other convenient place within the burgh.

37. No order or resolution of the Trustees at any meeting shall be altered or revoked unless at some meeting called for that special purpose or at a meeting the notice calling which contained intimation of the intention to propose such alteration or revocation.

A.D. 1911.

Notice to be
given before
altering
orders &c.

38. The Trustees may at any meeting from time to time appoint committees for carrying into effect any of the purposes or provisions of the Inverness Harbour Acts or this Order and the Trustees may appoint the chairman or convener of any such committee and may fix the quorum thereof and may continue alter or discontinue such committee and the Trustees may delegate to any such committee and such committee may exercise and perform such of the powers and duties competent to or incumbent on the Trustees in virtue of the Inverness Harbour Acts or this Order as the Trustees think fit.

Trustees
may appoint
committees.

39. Every committee so appointed may meet from time to time and may adjourn from place to place as they may think proper for carrying into effect the purposes of their appointment and at all meetings of the committee the chairman or convener appointed by the Trustees and in his absence or if no chairman or convener has been appointed one of the members present to be appointed by the meeting shall preside and all questions shall be determined by a majority of the votes of the members present and in case of equality of votes the chairman or convener or the member appointed by the meeting to preside shall have a second or casting vote.

Meetings of
committees.

40. No business shall be transacted at any meeting of any committee appointed by the Trustees unless the quorum of members (if any) fixed by the Trustees or if no quorum be fixed three members be present.

Quorum of
committees.

41. All proceedings of the Trustees or of any committee or of any person acting as one of the Trustees shall notwithstanding it be afterwards discovered that there was some defect in the appointment or election of any of the Trustees or of such person acting as aforesaid or that they or any of them were disqualified be as valid as if every such person had been duly appointed or elected and was qualified to be one of the Trustees as the case may be.

Informalities
in choice or
election not
to invalidate
proceedings.

42. The Trustees shall cause records to be kept by the clerk of all the proceedings of the Trustees and of every committee

Minutes of
proceedings
to be kept

A.D. 1911.
and when
signed to be
evidence.

appointed by them with the names of the Trustees attending each meeting and the record of every such proceeding shall be signed by the chairman of the meeting at which the proceeding took place and the record or minute of such meeting so signed or an extract thereof certified by the clerk shall be received as evidence in all courts and before all judges justices and others without proof of such meeting having been duly convened or held or of the persons attending such meeting having been or being Trustees or members of committees respectively or of the signature of the chairman or of the fact of his having been chairman all of which last-mentioned matters shall be presumed until the contrary is proved and such records shall at all reasonable times be open to the inspection of any of the Trustees and of any creditor on the security of the dues or rates or property of the Trustees.

Appoint-
ment of
officers &c.

43. It shall be lawful for the Trustees to appoint a clerk collector treasurer engineer harbour-master berth-master bulk-master or such of these officers as may be required and such other officers and servants as they shall judge necessary to be employed under them and to remove such officers or servants or any of them from time to time and to appoint others in their stead and to allow and pay such reasonable fees or salaries or wages to such officers and servants as the Trustees shall think proper.

*Transfer of Harbour and Property to the Trustees and
Continuance of Existing Rights.*

Harbour and
property
vested in
Trustees.

44. On and after the third Monday of November one thousand nine hundred and eleven the whole harbour undertaking of the existing trustees and their rights in the harbour and all such parts of the alveus or shore of the same as are vested in the existing trustees and all the docks piers jetties quays wharves walls lighthouses lightships buoys and beacons lights lands houses buildings embankments rails railways tramways sheds warehouses yards cranes roads works and conveniences and other matters and things in and connected with the harbour purchased acquired or constructed by the existing trustees or their predecessors or to be purchased acquired or constructed under the authority or in the execution of the Inverness Harbour Acts or this Order and also the whole undertaking estates boats vessels and works vested in the existing trustees shall be and

the same are hereby vested in the Trustees and all the rights powers and privileges conferred on or vested in and all the obligations duties and liabilities imposed upon or required of the existing trustees by the Inverness Harbour Acts or any of them or by any other Act or Order now in force and capable of taking effect shall be and are also hereby vested in and imposed upon the Trustees and may be used exercised and enforced and shall be undertaken performed and discharged by them in the same manner and to the same extent and effect as the said rights powers and privileges were or might have been used exercised and enforced by or might have been required and imposed upon the existing trustees if this Order had not been confirmed.

A.D. 1911.

45. Nothing in this Order shall annul or in anywise prejudice or affect any purchase sale conveyance grant lease bond security act matter or thing whatsoever before the commencement of this Order made done executed commenced or instituted under or by virtue or in pursuance of the Inverness Harbour Acts or any of them but all such purchases sales conveyances grants leases bonds securities acts matters and things shall so far as in force be as good valid and effectual to all intents and purposes whatsoever as if this Order had not been confirmed.

Grants conveyances &c. to continue in force.

46. All books registers deeds documents and writings by the Inverness Harbour Acts or any of them directed or authorised to be kept or made and which if this Order had not been confirmed would be receivable in evidence shall be admitted as evidence in all courts of law and equity and elsewhere in the same manner as if this Order had not been confirmed.

Books &c. to be evidence.

47. All money borrowed under the authority of the Inverness Harbour Acts or any of them and all other debts and moneys due or payable by the existing trustees shall be payable and paid by the Trustees and all rates tolls rents feu-duties ground annuals and other duties and arrears of rates tolls rents feu-duties ground annuals and other duties and all other debts and moneys belonging due or payable to the existing trustees may be collected and recovered by the Trustees in the same manner in all respects as they might have been collected or recovered by the existing trustees if this Order had not been confirmed.

Provision for payment of debts &c.

A.D. 1911.
Officers to
be continued.

48. The officers appointed by the existing trustees under the Inverness Harbour Acts or any of them shall continue to hold their offices during the terms of their respective appointments or until they resign or are removed and they shall be subject to the provisions of this Order and all bonds or securities granted for the conduct and intromissions of such officers shall be and remain valid and may be enforced by the Trustees to the same extent and effect as such bonds or securities might have been enforced by the existing trustees if this Order had not been confirmed.

Byelaws &c.
to remain in
force until
altered.

49. The byelaws rules and regulations made under the authority of the Inverness Harbour Acts or any of them or continued in force by the Inverness Harbour Acts or any of them which are in force at the commencement of this Order shall be the byelaws rules and regulations of the Trustees and shall continue in force until altered or recalled by the Trustees.

Actions &c.
not to abate.

50. All actions suits notices and proceedings at law and all arbitrations to which the existing trustees are parties at the commencement of this Order are hereby specially saved and reserved entire and shall not abate or be prejudiced or affected by anything in this Order contained and may be proceeded in by or against the Trustees without the necessity of intimating such action suit notice proceeding or arbitration to the Trustees or making them formally parties thereto.

Agreements
may be en-
forced by and
against
Trustees.

51. The Trustees may enforce against any person company or corporation and any person company or corporation may enforce against the Trustees to the same extent and effect as might have been enforced by or against the existing trustees if this Order had not been confirmed—

All Acts of Parliament and provisions of Acts so far as the same remain in force and other than those repealed or altered by this Order conferring any right on the existing trustees or on any such person company or corporation or their predecessors respectively :

All notices for taking land or other notices given or preliminary steps of procedure taken by or to the existing trustees or their predecessors or to or with any such person company or corporation or their predecessors :

All claims for compensation or damages or for debts penalties costs or expenses payable or recoverable by to or from the

existing trustees or in consequence of any act deed matter or thing done or omitted to be done by any such person company or corporation or their predecessors or by the existing trustees or their predecessors : A.D. 1911.

All contracts or agreements for the sale or purchase of lands or for the construction of works and other contracts or agreements whatsoever entered into or adopted by the existing trustees and any such person company or corporation or their predecessors respectively :

All grants conveyances leases discharges or other deeds or writings granted to the existing trustees or their predecessors by any person company or corporation or their predecessors or to any person company or corporation or their predecessors by the existing trustees or their predecessors or to which any of the said parties have acquired right.

Construction of Works.

52. Subject to the provisions of this Order the Trustees may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter specified or some of them or some part or parts thereof together with all necessary roads drains sewers approaches accesses walls wharves embankments piers jetties quays cuts slips gates channels landing stages mooring buoys and posts cranes shears railway and tramway sidings and dock rails and other machinery appliances works and conveniences in connexion therewith and incidental thereto respectively and may enter upon and take hold use and appropriate such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for these purposes and for the other purposes of the harbour. Construction of works.

53. The works herein-before referred to and authorised by this Order are the following (that is to say):— Description of works.

Work No. 1—A breakwater commencing at high-water mark of ordinary spring tides on the east side of the estuary of the River Ness one thousand four hundred and fifteen feet or thereby northward from the Inverness slaughter-house buildings extending thence one thousand one hundred and thirty feet or thereby north thirty-six

A.D. 1911.

degrees west and there terminating on the foreshore near low-water line:

Work No. 2—A deepening of part of the estuary of the River Ness for a boat harbour bounded on the east by a line commencing on the foreshore eight hundred and twenty feet or thereby west thirty degrees north from the north corner of the said slaughter-house buildings extending thence for nine hundred and sixty-five feet or thereby north twenty-seven degrees west in a bent line and there terminating on the foreshore thence bounded on the north by a line extending two hundred and ninety feet or thereby due west to a point in the said River Ness thence bounded on the west by a line extending in the said River Ness one thousand two hundred and forty feet or thereby southward and south-eastward partly curved and partly straight and there terminating and thence bounded on the south or south-east by a line extending two hundred and forty-five feet or thereby north-eastward terminating on the foreshore at the commencement of the east boundary:

Work No. 3—A gangway of open timber work commencing at high-water mark on the east side of the estuary of the said River Ness six hundred and forty feet or thereby west forty-two degrees north from the north corner of the said slaughter-house buildings extending thence two hundred and sixty feet or thereby due west on the foreshore to the side of Work No. 2 thence extending along the east side of Work No. 2 for eight hundred and sixty feet or thereby and there terminating:

Work No. 4—A deepening of the entrance and fairway channel of the present harbour of Inverness commencing at deep water in the Firth of Inverness one thousand and fifty feet or thereby north twenty-two degrees east from the green light on the head of the Carnarc Embankment from which it follows the present deep water channel southward for two thousand eight hundred feet or thereby and there terminating opposite the south end of Work No. 2.

The works herein-before described will be situate in the parish and county of Inverness and in the bed of the River Ness

and on the foreshore and bed of the sea adjacent to the said parish and county. A.D. 1911.

54. In the execution of the works by this Order authorised the Trustees may deviate laterally from the lines of such works within the limits of lateral deviation shown on the deposited plans and may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet upward and to any extent downward Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Powers of
deviation.

55. Notwithstanding anything contained in this Order or in the Act of 1899 the Trustees shall not dredge or excavate any part of the River Ness outside the groyne in front of the Shore Street Quay within two hundred yards of the viaduct and works connected therewith carrying the railway of the Highland Railway Company over the River Ness nor shall the Trustees construct any work or carry on any operations inside the said groyne which may prejudicially affect or endanger the safety and stability of the said viaduct and works If any difference shall at any time arise between the Trustees and the Highland Railway Company or their engineer with respect to the construction of any works or the carrying on of any operations inside the said groyne such difference shall be referred to and determined by an engineer to be agreed on or failing agreement by an engineer to be appointed by the Board of Trade on the application of either the Trustees or the Highland Railway Company.

For protec-
tion of High-
land Railway
Company.

56. The Trustees may enter upon any lands which they are authorised to purchase compulsorily for the purposes of this Order and they may on any lands belonging to them or to be taken and acquired by them under the powers of this Order make erect lay down use and maintain all walls quays roads docks rails lines and sidings tramways arches culverts and buildings for and in connexion with the several works hereinbefore described or any of them or any part thereof and the harbour undertaking.

Entry to
lands for
surveys and
works &c.

57. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Period for
compulsory
purchase of
lands.

A.D. 1911.

Power to
take servi-
tudes &c. by
agreement.

58. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Trustees any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu-duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Trustees
may sell or
let lands &c.

59. The Trustees may at any time and in such manner and for such price or consideration as they think proper sell feu let or otherwise dispose of so much or such parts of the lands and property acquired by them as may not be required for the purposes of the harbour and that either by public or private sale and the Trustees may enter into and carry out agreements with any person for or in connexion with the sale and purchase of any such lands and property.

Period for
completion
of works.

60. If the works by this Order authorised are not completed within ten years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Trustees for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Expiration
of period not
to prevent
dredging &c.

61.—(1) Notwithstanding the expiration of the period by this Order limited for the completion of the works the Trustees may at any time and from time to time execute within the harbour all such dredging scouring and deepening and make and maintain all such incidental extensions and enlargements of and additions to the works so completed and all such accommodations and conveniences connected therewith as the Trustees deem requisite or convenient for the improvement of the harbour and for the safety and convenience of vessels resorting thereto and all rock stone shingle sand mud and other materials so dredged up or removed as aforesaid shall be the property of the Trustees and they may use appropriate sell or otherwise dispose of the same or lay down and use the same for the purposes of the harbour as they think fit:

Provided that no materials excavated or dredged under the provisions of this Order shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade.

A.D. 1911.

(2) All money arising from any sale or other application of any rock stone shingle sand mud and other materials under this Order after payment of any expenses in connexion therewith shall be applied as part of the revenue of the harbour.

62. The Trustees may in the execution of the works authorised by this Order and for the purposes thereof and so far as necessary therefor and within the limits of deviation shown on the deposited plans temporarily cross alter stop up remove divert raise and lower or otherwise interfere with all roads highways footpaths streets streams watercourses canals railways tramways rivers bridges quays landing-places landing-stages sewers drains culverts ways telegraphs and telegraphic or telephonic apparatus gas water and other pipes and works which it may be necessary or convenient to cross alter stop up or divert or interfere with for the purposes of the works authorised by this Order providing when possible a proper temporary substitute before interrupting the traffic on any such road highway footpath street canal railway tramway bridge quay landing-place landing-stage or way or the flow of water gas sewage or electricity in any stream sewer drain watercourse culvert canal apparatus or pipe and making full compensation to all persons injuriously affected thereby Provided that nothing in this Order shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the said Act of 1882 apply except in accordance with the provisions of that section Provided also that the Trustees shall not alter divert or in any way interfere with any telegraphic line (as defined in the Telegraph Act 1878) or other works belonging to or used by the Postmaster General except subject to and in accordance with the provisions of the Telegraph Act 1878.

Power to
divert roads
&c.

63. Every person who shall wilfully obstruct any person acting under the authority of the Trustees in setting out the lines of the works by this Order authorised or who shall pull up or remove any tide gauges or posts poles or stakes fixed into the ground on the land or in the water for the purpose of

Penalty for
obstructing
construction
of works.

A.D. 1911. — setting out the lines and levels of the said works or deface or destroy the said works or any part thereof shall for every such offence be liable to a penalty not exceeding five pounds.

Agreements. 64. The Trustees may make and carry out agreements with any person for the purchase of lands servitudes or other rights required for the purposes of this Order and for and in connexion with the construction of the works authorised by this Order and the harbour undertaking of the Trustees and that on such terms and under such conditions as may be agreed between the Trustees and any such person.

Works to be part of harbour undertaking. 65. The works authorised by this Order and the lands and property vested in or acquired by the Trustees for the purposes of this Order shall for all purposes including the levying and collecting of the rates and dues authorised and prescribed by this Order be deemed to be and be taken as part of the undertaking of the Trustees.

Works below high-water mark not to be commenced without consent of Board of Trade. 66. The Trustees shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve (such approval being signified as last aforesaid) and where any such work may have been constructed the Trustees shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approval. If any such work be commenced or completed contrary to the provisions of this Order the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Trustees and the amount of such costs and charges shall be a debt due from the Trustees to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade. 67. If at any time the Board of Trade deems it expedient for the purposes of this Order to order a survey and examination of any work constructed by the Trustees under the powers of this Order on in over through or across tidal lands or tidal water

or of the intended site of any such work the Trustees shall defray the expenses of the survey and examination and the amount thereof shall be a debt due from the Trustees to the Crown and be recoverable as a Crown debt or summarily. A.D. 1911.

68. If any work constructed by the Trustees under the powers of this Order on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Trustees and the amount of such expense shall be a debt due from the Trustees to the Crown and be recoverable as a Crown debt or summarily. Abatement of work abandoned or decayed.

69. The Trustees shall at or near the works below high-water mark by this Order authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade may from time to time require or approve. If the Trustees fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. Lights on works during construction.

70. The Trustees shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct. If the Trustees fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. Trustees to exhibit lights.

71. In case of injury to or destruction or decay of the works by this Order authorised or any part thereof constructed on the shore or in the bed of the River Ness the Trustees shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for directions as to the means to be taken and the Trustees shall be liable to a penalty not exceeding ten pounds for every Provision against danger to navigation.

A.D. 1911. month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Rates.

Power to
levy rates.

72. It shall be lawful for the Trustees and they are hereby authorised from and after the commencement of this Order in lieu of the dues and rates authorised by the Order of 1883 to demand levy collect and receive from the owners proprietors or consignees of all goods merchandise wares or commodities whatsoever which shall be imported into or exported from the harbour in any ship vessel barque boat lighter or otherwise any sums not exceeding the dues or rates specified in Schedule D. to this Order and from the owners of every ship vessel barque boat or lighter coming into or going out of the harbour or the agents or managers of such owners and in the case of vessels entering the harbour for the purpose of overhaul or repair from the person or company executing such overhaul or repair any sums not exceeding the dues or rates on vessels specified in Schedule E. to this Order and from every person whomsoever using any weighing machine now existing or hereafter to be constructed or provided at the harbour any sums not exceeding the dues or rates applicable thereto specified in Schedule F. to this Order Provided always with reference to the recovery of the dues or rates specified in Schedule D. that in so far as regards steam vessels being regular traders at the harbour it shall not be requisite for the owners of such steam vessels to give prior notice of the shipment or unshipment of cargo nor to make payment of the dues or rates before shipment or unshipment and it shall not be lawful for the Trustees to detain such vessels or goods thereby carried for payment of any dues or rates exigible on account of any single voyage inwards or outwards but they may detain such vessels on their return or any other vessel or goods belonging to the owners of such vessels until the amount of the dues or rates in arrear be paid or security for payment thereof be given Provided also that the rates for cargo and trading vessels specified in Schedule E. to this Order shall not be levied on vessels taking or using the Caledonian Canal Provided further that the rates on goods specified in Schedule D. to this Order shall not be leviable in respect of carriages carts and articles carried bonâ fide by the Kessock ferry boats which shall by the influence of the tide or stress of weather be driven to the quays or wharves belonging

to the harbour but in such cases the said boats shall be exempted from payment of the rates for cargo and trading vessels specified in Schedule E. to this Order and such carriages carts and articles shall be landed at the said quays or wharves free from the rates on goods specified in Schedule D. to this Order. A.D. 1911.

73. The Trustees shall be entitled to make all reasonable charges for work done services rendered facilities afforded and use of the harbour rails plant machinery or appliances provided by them for the dispatch of business at the harbour or the convenience of shipmasters merchants and others concerned with the traffic thereat in so far as such charges are not expressly provided for by this Order. Trustees may make other charges.

74. In all cases where the dues or rates exigible have been paid on goods imported such goods may within one month after the date of importation be exported free of outward dues or rates if in the same condition and belonging to the same owners as when imported and not altered by manufacture or other operation thereon. Goods paying rates inward free outward.

75. The Trustees may levy demand recover and receive the dues or rates for white fish and for fresh herrings sprats and garvies direct from the sea transhipped or unshipped within the harbour (without prejudice to their right to levy demand recover and receive the same from any other person) either from the fish salesmen or auctioneers who dispose of such fish or from the persons purchasing or receiving delivery of the same (otherwise than as carriers) from any vessel who shall respectively be entitled to deduct the amount of such dues or rates from the price at which such fish were sold or purchased and such fish salesmen auctioneers and purchasers or receivers shall when required be respectively bound to furnish the Trustees or the collector with a true account under their hands of the quantity of such fish and to verify the same by the production of their books accounts or other documents to the Trustees or to the collector and every person who shall when so required refuse or fail to give and verify such an account or who shall give or subscribe a false account shall be liable to a penalty not exceeding ten pounds. Provisions as to collection of rates on white fish and fresh herrings.

76. The master or owner of every fishing boat (not being a pleasure boat or yacht) shall on arrival in the harbour forthwith report the same to the collector and shall furnish to the collector a true and accurate statement of his take of fish Master of fishing boats to report take of fish.

A.D. 1911. and the name of any person obtaining delivery thereof and if he fail to do so he shall be liable to a penalty not exceeding ten pounds.

Power to
compound
for rates.

77. In the case of steamers drifters and other vessels trading to and from or frequently using the harbour the Trustees may agree to charge such annual or other sum as they may think reasonable by way of compounding for the dues or rates or sums payable in respect of such vessels and their cargoes but so that no preference be in any case given to any person.

Vessels
laying up.

78. No vessel shall enter the harbour for the purpose of laying up or shall remain therein for any purpose for more than one month at any one time unless with the consent of the Trustees in writing under the hand of the harbour-master.

Sale of
animals and
perishable
goods for
rents charges
&c.

79. Notwithstanding anything in this Order contained the Trustees may if they think fit sell any goods of a perishable nature deposited and lodged with or detained by them at any time when in their judgment the goods would be materially lessened in value by being further retained by them and may sell at any time any animals so deposited and lodged with or detained by them in respect whereof default has been made of payment of any rates dues rents or charges or freight due thereon and whether or not they have notice to detain such goods or animals Provided always that in no case shall any goods whatever liable to a duty of Customs or Excise be sold unless payment shall have been first made of the duty payable thereon.

Application
of proceeds
of sale of
animals or
perishable
goods for
rents charges
&c.

80. When the Trustees so sell any such animals or perishable goods they shall apply the proceeds of the sale in payment of the rates dues rents and charges due and payable to the Trustees in respect thereof and the expenses of the sale and freight due thereon rendering on demand the surplus (if any) of the proceeds and the unsold animals or goods (if any) to the person entitled thereto.

Charges for
goods &c.
left in
harbour.

81. The Trustees may in respect of any goods articles animals or things which shall remain upon any part of the harbour for a longer period than shall be allowed by the bye-laws and regulations of the Trustees for the time being in force charge for every twenty-four hours or part thereof during which any such goods articles animals or things shall so remain without the consent of the harbour-master an additional sum

not exceeding the rates dues and charges leviable or levied under the provisions of this Order in respect of such goods animals articles or things and any sum so chargeable may be recovered from the owner of such goods animals articles or things in like manner as such rates dues and charges are recoverable. Provided that such rates dues and charges shall be made equally to all persons in respect of all goods animals articles or things falling within the same class or description and subject to the like rates dues and charges in the like circumstances.

A.D. 1911.

82. The Trustees may from time to time confer exemption from such portion as they think fit of any rates dues and charges payable under this Order. Provided that every such exemption shall be made equally to all persons in respect of all vessels and all goods articles animals or things falling within the same class or description and subject to the same rates dues and charges and in the like circumstances.

Power to
Trustees to
exempt from
rates and
charges.

83. In levying and collecting the amount of any rate due or charge payable under the authority of this Order any fractional part of a penny shall be reckoned one penny.

Fractional
parts of a
penny.

84. Subject to the provisions of the section of this Order the marginal note to which is "Power to levy rates" no vessel shall leave the harbour until a certificate from the Trustees or the collector or some other officer authorised by the Trustees of the payment of all rates dues and charges payable to them in respect of such vessel and the cargo therein shall have been produced to and left with the Trustees or some officer authorised by them and if any vessel liable for such rates dues and charges shall depart from the harbour without the production and leaving of such certificate as aforesaid the owner of such vessel shall be liable to the payment by way of damages to the Trustees of a sum not more than twice the amount of the rates dues and charges which should have been paid and in addition thereto the master of such vessel shall be liable to a penalty not exceeding twenty pounds.

Vessels not
to depart
until rates
paid.

85. While any rates dues and charges remain unpaid in respect of any vessel or any animals minerals goods articles or things (excluding passengers' luggage) at the time being or previously aboard and liable thereto the Trustees (subject to the exception provided for in the section of this Order the

Trustees to
refuse entry
when pre-
vious rates
on vessels
are unpaid
and vessels

A.D. 1911. marginal note to which is "Power to levy rates") shall not be bound to receive any further or other entry in respect of such vessel and may cause such vessel to be detained until all such rates dues and charges have been paid.

may be
detained.

Rates to be
revised.

86. The Trustees shall from time to time revise the rates dues and charges received by them under this Order so that the income of the Trustees under this Order may always be so far as practicable sufficient and not more than sufficient for the purposes of the Inverness Harbour Acts and this Order and if at any time and from time to time the clear annual income derived from the harbour and works on the average of the then three last preceding years after payment of all expenses and outgoings shall exceed the amount sufficient to answer the purposes of the said Acts and this Order the Board of Trade may if in their discretion they think fit reduce the rates dues and charges leviable under this Order to such extent as will be sufficient to provide the amount aforesaid and the rates dues and charges shall thereupon be reduced accordingly but with power to the Board of Trade at any time and from time to time to raise them again to sums not exceeding those authorised by this Order.

Sections 54
and 55 of
Act of 1847
to apply to
rates.

87. The fifty-fourth section of the Act of 1847 shall be read as if Schedules D and G and Parts 1 and 2 of Schedule E to this Order had been mentioned in that section instead of the first second and fourth parts respectively of the schedule to that Act and the fifty-fourth and fifty-fifth sections of that Act shall have effect accordingly.

Reservation
of canal com-
missioners'
power to
levy rates.

88. Notwithstanding anything in this Order contained the commissioners for making and maintaining the Caledonian Canal may continue to demand and receive any rates or dues not exceeding the amounts which might have been demanded and received by them under the Act of 1847 if this Order had not been confirmed and all rates and dues so received shall be applied in like manner, as directed with reference thereto by the Act of 1847 and such commissioners shall have the like power as is by this Order conferred on the Trustees to confer vary or extinguish exemptions and enter into compositions with respect to payment of any rates or dues which the said Commissioners are authorised to demand and receive.

Finance.

A.D. 1911.

89. The Trustees in addition to the sums already borrowed by the existing trustees may from time to time borrow on mortgage or otherwise—

Power to
borrow
money.

- (a) For the purposes of this Order and of the works authorised by this Order and for the purchase of lands and for the general purposes of their harbour undertaking any sum or sums of money not exceeding in the whole the sum of thirty thousand pounds;
- (b) For repayment of the moneys borrowed or to be borrowed before the third Monday of November one thousand nine hundred and eleven by the existing trustees under the authority of the Act of 1899 and remaining unpaid the amount necessary; and
- (c) For paying the costs charges and expenses of and incident to the preparing for obtaining and passing of this Order the amount necessary;

on the security of the rates dues and charges authorised by this Order and of the property revenue and undertaking of the Trustees or any of them and any money borrowed under this Order and discharged otherwise than by means of a sinking fund or by repayment by instalments may be re-borrowed for the purposes of this Order and so from time to time.

90. The Trustees may accept and take from any bank or banking company in Scotland credit on a cash account to be opened and kept with such bank or banking company in the name of the Trustees according to the usage of bankers in Scotland to the extent of the sum which the Trustees are authorised to borrow or any part thereof and may assign the dues and rates authorised to be levied by this Order and the property revenues and undertaking of the Trustees or any of them in security of the payment of the amount of such credit or of the sums advanced from time to time on such cash account with interest thereon. Provided that the whole principal sums due and owing by the Trustees on such cash account and for moneys otherwise borrowed by them on such security shall not when taken together exceed the sums by the Act of 1899 and this Order authorised to be borrowed.

Power to
borrow on
cash account.

A.D. 1911.

Sinking
fund.

91. The Trustees shall in the event of their borrowing otherwise than by way of repayment by instalments in every year appropriate and set apart out of the revenues of the harbour such a sum as will with the accumulations thereof by way of compound interest at the rate of three per centum be sufficient to pay off the whole of the principal moneys borrowed under the Act of 1899 and this Order (other than for the payment of the costs of this Order) within forty-five years after the same are respectively borrowed. Provided that moneys borrowed for the payment of the costs of this Order shall be repaid within five years from the commencement of this Order.

Trustees
may grant
mortgages
for payment
of principal
and interest
by instal-
ments.

92. In exercise of their borrowing powers the Trustees may grant bonds and mortgages containing an obligation for payment of the principal sums therein contained and interest thereon by fixed periodical instalments of such principal and interest to be therein specified whereby the said sums and all interest thereon shall be fully paid off at the expiration of the period over which such instalments shall extend which period shall not exceed in the whole forty-five years. In the event of the Trustees so exercising their borrowing powers they shall in every year appropriate and set apart out of the revenues of the harbour such a sum as will provide for the payment of the said instalments of principal and interest.

Application
of Act of
1847 Order
of 1883 and
Act of 1899.

93. All the provisions of the Act of 1847 (including the forms of security in that Act) the Order of 1883 and the Act of 1899 so far as the same remain in force and are applicable shall subject to the provisions of this Order extend and apply to the purposes of this Order and to the moneys to be borrowed under this Order.

Application
of money
borrowed.

94. All money borrowed by the Trustees under the powers of this Order (other than money borrowed for the payment of the costs of this Order) shall be applied in and for the purchase of lands and the construction of the works authorised by this Order and for the other purposes of this Order and for the general purposes of the harbour to which capital is properly applicable.

Protection of
lenders and
others from
inquiry.

95. Any person lending or paying money to the Trustees under the provisions of the Inverness Harbour Acts or this Order or any of them shall not be bound to inquire as to the observance by the Trustees of any provisions of the said Acts

or this Order or of any Act incorporated therewith or be bound or entitled to see to the application of such money or of any part thereof or be answerable for any loss or non-application of the same. A.D. 1911.

96. In addition to the powers conferred upon the Corporation by section 32 of the Act of 1899 it shall be lawful for the Corporation and they are hereby authorised to guarantee payment of the principal and interest of any debt incurred or loan contracted by the existing trustees in virtue of the powers conferred by the Act of 1899 and of any debt to be incurred or loan to be contracted by the Trustees in virtue of the powers conferred by this Order. Corporation may guarantee loan.

97. In order to ensure the due and regular payment of the interest on moneys borrowed by the existing trustees in virtue of the powers conferred by the Act of 1899 and the payment of the interest on moneys borrowed by the Trustees in virtue of the powers conferred by this Order and the sum annually payable to the sinking fund and the instalments of principal and interest for the repayment of the moneys so borrowed as aforesaid it shall be lawful for the Corporation and they are hereby authorised to guarantee the said interest and annual payments and instalments on the security of the guarantee rate by this Order authorised to be levied by the Corporation. Corporation may guarantee instalments &c. on security of guarantee rate.

98. If in any year the revenues of the harbour shall be insufficient after providing for the necessary expenses of working management and maintenance to meet the charge for interest and instalments of principal annually payable to the sinking fund or for the redemption of moneys borrowed as aforesaid the Trustees shall (in the event of the Corporation having granted the said guarantee authorised by this Order) by writing under the hand of the clerk require payment from the Corporation of such a sum as may represent the amount of such deficiency which deficiency shall be conclusively instructed and ascertained by the abstract of the accounts of the Trustees as audited and certified by the auditor appointed by the Board of Trade under the provisions of the Act of 1899 and the Corporation shall within one month after receipt of such requisition pay the amount of such deficiency to the Trustees and in default of payment the Trustees or the person or persons from Payment by Corporation under the guarantee to be made on requisition by the Trustees.

A.D. 1911. whom the existing trustees or the Trustees have borrowed money may recover from the Corporation the amount due as a simple contract debt by action in any court of competent jurisdiction.

Harbour
guarantee
rate.

99. For the purposes of and in security of the guarantee given by the Corporation under the authority of this Order it shall be lawful for the Corporation from time to time to fix impose and levy such a rate to be termed "the harbour guarantee rate" as shall be necessary to pay the amount of the said deficiency.

Assessment
and levying
of rate.

100. The harbour guarantee rate shall be imposed and levied by the Corporation on and from the owners and occupiers of all lands and heritages within the burgh according to the valuation roll in force therein for the time being in equal proportions and that either separately from or along with and in the same manner as the other assessments leviable by the Corporation are imposed and levied by them within the burgh and all the powers enactments and provisions contained in the Burgh Police (Scotland) Acts 1892 to 1903 with respect to the levying payment and recovery of the assessments thereby authorised to be levied on and from the owners or the occupiers of lands and heritages and with respect to the exceptions and exemptions from such assessments shall be and are hereby made applicable to the levying payment and recovery of the harbour guarantee rate by this Order authorised and the exceptions and exemptions therefrom in the same manner as if that rate had been authorised to be levied under the authority of the said Burgh Police Acts.

Payments by
Corporation
to be a debt
owing by
Trustees.

101. Any sums paid by the Corporation under or in virtue of the provisions of this Order in respect of the said guarantee shall with the accumulated interest thereon at the rate of four pounds per centum per annum be a debt owing to the Corporation by the Trustees and shall be a charge upon and be paid to the Corporation out of the surplus revenues (if any) of the harbour in subsequent years to that in which the said payment or payments shall have been made.

Additional
council
representa-
tives.

102. In the event of the Corporation being at any time called upon in virtue of the provisions of the section of this Order of which the marginal note is "Payment by Corporation under the guarantee to be made on requisition by the Trustees"

to make payment of any deficiency as therein provided and resolving to levy and levying a harbour guarantee rate in virtue of the provisions of the sections of this Order of which the marginal notes are "Harbour guarantee rate" and "Assessment and levying of rate" it shall be lawful for the Corporation and they are hereby authorised to appoint as Trustees in addition to the seven council representatives mentioned in the section of this Order of which the marginal note is "Harbour trustees incorporated" three additional members of the Corporation as council representatives who shall be known as "the additional council representatives" and the additional council representatives shall have and exercise the same powers and remain in office in the same manner and to the same effect as the other council representatives provided for by this Order and the Corporation shall be entitled to appoint such additional council representatives who shall continue in office as trustees so long as the harbour guarantee rate is levied or any sum paid by the Corporation under the said guarantee remains unpaid by the Trustees.

A.D. 1911.
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103. All mortgages assignments or other securities on the dues rates and charges leviable by the Trustees and granted by the existing trustees before and subsisting at the commencement of this Order shall during the continuance of such mortgages assignments or securities have priority over any mortgages assignments or securities granted by the Trustees after the commencement of this Order. Provided that all securities hereafter granted by the Trustees for money borrowed or raised under the Inverness Harbour Acts or this Order shall rank together *pari passu* without preference or priority the one over the other.

Priority of
existing
mortgages.

104. The mortgagees of the Trustees may enforce payment of arrears of interest or principal or of principal and interest due on their mortgages by the appointment of a judicial factor and in order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for the judicial factor is made shall not be less than three thousand pounds.

Appoint-
ment of a
judicial
factor.

105. The clerk shall within two months after the expiration of each year during which any sum is required to be paid as an instalment or to be set apart for a sinking fund transmit to the

Annual
return to
Board of
Trade.

A.D. 1911. Board of Trade a return in such form as may be prescribed by that Board and verified by a statutory declaration if so required by them showing the amounts which have been paid as instalments or set apart or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return the clerk shall be liable to a penalty not exceeding twenty pounds. If it appears to the Board of Trade by such return or otherwise that the Trustees have failed to pay any instalment or set apart the sum required by this Order for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Order the Board of Trade may if they think fit and after hearing the Trustees if desiring to be heard by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced on a summary application presented for that purpose.

Annual
account to
be sent to
Board of
Trade.

106. The Trustees shall within one month after sending to the sheriff clerk a copy of their annual account send a copy of the same to the Board of Trade and the Trustees shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

Miscellaneous.

Seaward
limits of
harbour.

107. Without prejudice to the limits otherwise of the harbour as defined by royal charter granted by King James VI. in favour of the burgh dated the first day of January one thousand five hundred and ninety-one and ratified by the Act of the Scottish Parliament 1661 chapter 147 and by another Act of the Scottish Parliament 1685 chapter 88 the seaward limits of the harbour shall be a line drawn from Fort George in the county of Inverness to Chanonry Point in the county of Ross and.

Cromarty Provided always that nothing herein shall alter or affect the pilotage limits defined by the Order of 1883. A.D. 1911.

108. The Trustees may continue or may lift alter re-lay and extend the rails or railways on the quays piers and elsewhere within the harbour and may lay such new rails or railways on their works or any of them as they may deem necessary or convenient for the traffic at the harbour and they may apply any part of the moneys borrowed under the provisions of this Order for that purpose. Trustees may re-lay and extend railways.

109. The Trustees may from time to time enter into and carry into effect arrangements and agreements with any company body or person with respect to the use of the harbour undertaking of the Trustees and of the works authorised by this Order or any part thereof. Power to enter into agreements.

110. The Trustees may let on lease for any period not exceeding five years any warehouses buildings sheds cranes and weighing or other machines or conveniences provided by them at such rents and upon such terms and conditions as shall be agreed upon between the Trustees and the persons taking using or occupying the same. Power to lease warehouses &c.

111.—(1) The Trustees may set apart and appropriate to or for the exclusive use or accommodation of any particular trade person traffic or vessel or class of vessels any lands or any part or parts of the harbour or the whole or any part of any of the piers or works or of any warehouses sheds quay-space or other facilities connected therewith and in addition to the other dues rates and charges they are authorised to demand and take they may for such exclusive appropriation or use demand and take such reasonable charges and make such regulations as they from time to time think fit. Power to Trustees to set apart and appropriate berths &c.

(2) No person or vessel shall make use of any lands part or parts of the harbour or the whole or part of any piers or works or of any warehouses sheds quay-space or other facilities so set apart or appropriated without the consent of the Trustees.

(3) Any person knowingly offending against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and a further penalty not exceeding ten pounds for every day during any part of which such offence shall continue after

A.D. 1911. notice not to use such berth and the harbour-master may order such person and any such vessel to be removed and the provisions of section 58 of the Harbours Docks and Piers Clauses Act 1847 shall extend and apply mutatis mutandis to and in relation to any such vessel.

Passengers
and cargo to
be landed &c.
at appointed
places only.

112. No vessel shall except with the previous consent in writing of the Trustees under the hand of the harbour-master or other duly authorised officer of the Trustees land or embark receive or deliver passengers or ship unship tranship receive or deliver goods or animals within the harbour except at or upon such place or some one of such places as shall from time to time be appointed in that behalf by the Trustees in accordance with byelaws to be made under the provisions of the Harbours Docks and Piers Clauses Act 1847 or the Inverness Harbour Acts or this Order and any person knowingly committing or wilfully permitting a breach of this enactment shall be liable for every such offence to a penalty not exceeding fifty pounds and to a further penalty not exceeding five pounds for every hour such breach shall continue.

Power to
enter into
arrange-
ments as to
police pur-
poses.

113. The Trustees on the one hand and the Corporation on the other may and they are hereby empowered from time to time to enter into all agreements or arrangements which may be found necessary or convenient with respect to the paving lighting cleansing and watching or other police purposes of the harbour.

Power to
appoint
weighers and
recorders of
weights and
others and to
pay salaries
and wages.

114. The Trustees may from time to time appoint license and employ weighers and recorders of weights and may pay such salaries and wages to the superintendents and interim superintendents and such remuneration to the said weighers and recorders of weights as to the Trustees shall seem proper and they may also from time to time fix the remuneration to be paid to such persons when and if employed by persons other than the Trustees Provided that the remuneration to be paid by persons other than the Trustees shall be the same in the case of all persons having similar goods or animals weighed in the like circumstances.

Additional
byelaws.

115.—(1) In addition to the powers of making byelaws contained in any other enactment enabling the Trustees to make byelaws they may from time to time subject to the

provisions of this Order make such byelaws as they think fit for all or any of the following purposes (that is to say):— A.D. 1911.

For preventing any part of the harbour or lands of the Trustees connected therewith specially appropriated by the Trustees for any particular trade business or purpose being used for any other purpose so as to prevent or interfere with its use for the purpose for which it is so appropriated;

For preventing and removing obstructions or impediments at in or alongside the harbour and lands of the Trustees connected therewith and the channels roads and accesses thereto respectively;

For regulating the use of and the moving of carriages waggons and trucks within or on the harbour and lands of the Trustees connected therewith and the rails sidings and turntables of the Trustees thereon;

For preventing injury to and protecting the harbour and the works and lands of the Trustees connected therewith and property thereon or within the harbour;

For regulating the using of the buoys of the Trustees;

For preventing nuisance or annoyance by smoke and noise caused by vessels and the machinery and appliances thereof;

For the prevention of cruelty in the shipping trans-shipping unshipping landing and removal of animals;

For preventing the exhibiting or placing in or on the harbour or any of the piers or works or lands of the Trustees connected therewith of any goods for sale other than such goods as the Trustees from time to time think fit to be permitted to be sold there and other than perishable articles landed on the piers and works or lands connected therewith and sold within forty-eight hours of their being landed;

For preventing the smoking lighting or burning of tobacco or any herb or substance whatsoever in any vessel lying in any part of the boat harbour;

For regulating the towing of vessels at the harbour the size and number of vessels towed at one time in one train the order and manner in which the towage shall

A.D. 1911.

be given and the duties and conduct of all persons employed on the steam tugs or other power used at the harbour for towing vessels with regard to the rate of speed at which they may proceed within the harbour or with regard to any other matter or thing;

For regulating the ballasting of vessels within the harbour and the order and manner in which they shall be supplied with ballast and the discharging removal or disposal of ballast.

(2) Such byelaws (except so far as they relate solely to the Trustees or their officers or servants) shall be subject to the provisions with respect to byelaws of the Harbours Docks and Piërs Clauses Act 1847 (except section 85 of that Act) but no such byelaw shall have any force or effect unless and until the same be confirmed by the Board of Trade.

(3) Any person who offends against any such byelaw shall be liable for every offence to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings for every day such offence shall continue after conviction thereof and such penalties shall be in addition to any damages which may be recoverable by the Trustees or by any other person or company for any loss or injury to them or him or to their or his property consequent on such offence.

Recovery of penalties.

116. All penalties which are recoverable by the Trustees under the Inverness Harbour Acts or this Order may be recovered summarily under the provisions of the Summary Jurisdiction (Scotland) Act 1908.

Pilotage returns.

117. In section twenty-one of the Act of 1899 the reference to section thirty-two of the Order of 1883 shall be read as if the reference were to section twenty-two of that Order.

Pilotage authority.

118. For the purposes of the Inverness Harbour Acts and this Order the Trustees shall be the pilotage authority as defined by the Merchant Shipping Act 1894 within the pilotage limits mentioned in section twenty-two of the Order of 1883 and all the powers conferred on pilotage authorities by the said Act of 1894 shall be vested in the Trustees for the purposes aforesaid.

119. All pilots licensed by the Trustees may take the rates of pilotage specified in Schedule G to this Order Provided always that nothing herein contained shall prevent or preclude the Trustees as the pilotage authority from making byelaws under the provisions of the Merchant Shipping Act 1894 as to pilotage and the rates and prices or other remuneration to be demanded and received for the time being by pilots licensed by the Trustees.

A.D. 1911

Rates of
pilotage.

120. Nothing contained in this Order shall be deemed to exempt the harbour or the Trustees from the provisions of the Merchant Shipping Act 1894 or from any general Act relating to merchant shipping harbours or docks or to dues on shipping or on goods carried in vessels now in force or which shall be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised by this Order.

Nothing to
exempt
harbour or
Trustees
from pro-
visions of
Merchant
Shipping
Act.

121. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree and in particular nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

122. Nothing in this Order contained shall alter lessen or take away any of the rights powers or privileges of the Caledonian Canal Commissioners or of the proprietor for the time being of Kessock Ferry his heirs and successors.

Saving rights
of Caledonian
Canal and
Kessock
Ferry.

123. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Trustees out of the

Costs of
Order.

A.D. 1911. moneys to be borrowed and received under the authority of this Order or out of the dues and rates to be levied under the Order of 1883 or this Order or other revenues of the Trustees.

SCHEDULES referred to in the foregoing Order.

SCHEDULE A.

REPEAL OF ENACTMENTS.

Session and Chapter.	Title of Acts and Order.	Extent of Repeal.
10 & 11 Vict. c. 209 (local and personal).	The Inverness Harbour Act 1847.	Sections two three four five six seven eight nine ten eleven twelve thirteen fourteen fifteen sixteen seventeen eighteen nineteen twenty twenty-one twenty-two twenty-three twenty-four twenty-five twenty-six twenty-eight fifty-one fifty-two and fifty-three.
46 & 47 Vict. c. 43	The Inverness Harbour Order 1883.	Sections ten thirteen fourteen sixteen twenty-six and the schedule.
62 & 63 Vict. c. 100.	The Inverness Harbour Act 1899.	Section thirty-eight.

SCHEDULE B.

ELECTION OF INVERNESS HARBOUR TRUSTEES 19

We A.B. [here insert name address and designation as in the register of electors] and B.C. [here insert name address and designation as aforesaid] hereby propose D.E. [here insert name address and designation as aforesaid] for election as a Traders' Trustee at the next ensuing election of Inverness Harbour Trustees.

Given under our hands this day of
nineteen hundred and

To G.H.

Clerk to the Inverness Harbour Trustees.

SCHEDULE C.

A.D. 1911.

PART I.

INVERNESS HARBOUR.

In terms of the Inverness Harbour Order 1911 I hereby give notice that I have received intimation that the following persons are proposed for election as Traders' Trustees at the next ensuing election of Inverness Harbour Trustees on the day of 19 .

Name of Candidate.	Designation and Address of Candidate.	Names of Proposer and Seconder.	Designations and Addresses of Proposer and Seconder.

Given under my hand at [*specify place and date*].

G.H.

Clerk to the Inverness Harbour Trustees.

PART II.

And I further give notice in terms of the Inverness Harbour Order 1911 that in respect the number of persons proposed for election as Traders' Trustees does not exceed the number of vacancies to be supplied at the said election there will be no poll and I further declare that the persons so proposed will on the day of election be deemed to be elected as Traders' Trustees.

A.D. 1911.

SCHEDULE D.

RATES ON GOODS.

							Rate.	
							s.	d.
Aerated water	...	...	...	...	...	per ton	1	0
Alabaster	...	...	...	...	...	per ton	2	0
Ale porter and beer	...	...	...	...	...	per ton	1	0
Apples	...	...	...	...	...	per ton	1	6
Ashes viz. :—								
Pot or pearl	...	...	...	...	...	per ton	2	0
Weed and wood	...	...	...	...	...	per ton	2	0
Asphalte and asphalte blocks	...	...	...	...	...	per ton	1	0
Bacon or hams	...	...	...	...	...	per ton	1	6
Ballast	...	...	...	...	...	per ton	0	2
Bark oak and birch	...	...	...	...	...	per ton	1	8
Barley shelled or pearl	...	...	...	...	...	per ton	1	6
Basket rods	...	...	...	...	...	per ton	2	0
Baskets	...	...	...	...	...	per ton	2	0
Beef pork and other meats cured	...	...	...	...	...	per ton	1	6
Beer spruce and black	...	...	...	...	...	per ton	1	6
Bale and box goods not specified	...	...	...	...	...	per ton	1	6
Barrels—empty herring and sprat	...	...	...	...	...	each	0	1
Berries of every description	...	...	...	...	...	per ton	1	6
Bicycles or tricycles	...	...	...	...	...	each	0	3
Biscuit	...	...	...	...	...	per ton	1	6
Blacking	...	...	...	...	...	per ton	1	6
Bleaching powder	...	...	...	...	...	per ton	1	6
Boats	...	...	...	...	...	per foot of keel	0	1½
Bobbins and bobbin blocks	...	...	...	...	...	per ton	0	6
Bones and bone dust	...	...	...	...	...	per ton	1	0
Books and stationery goods	...	...	...	...	...	per ton	1	6
Bottles of green or common glass	...	...	...	...	...	per ton	1	6
Bottles broken	...	...	...	...	...	per ton	0	4
Bran	...	...	...	...	...	per ton	1	0
Brass	...	...	...	...	...	per ton	2	0
Bricks common	...	...	...	...	...	per ton	0	6
Bricks fire	...	...	...	...	...	per ton	1	0
Brimstone	...	...	...	...	...	per ton	2	0
Butter	...	...	...	...	...	per ton	1	6
Boxes salmon herring or sprat empty	...	...	...	...	...	per dozen	1	0

							Rate.		A.D. 1911.
							s.	d.	
Candles	...	...	...	...	...	...	per ton	1 6	...
Cane reeds	...	...	...	...	...	...	per ton	1 6	...
Casks empty not being returned packages	...	...	...	...	...	...	per puncheon	0 6	...
Other casks in proportion.									
Cattle viz.:—									
Bulls cows and oxen	...	...	...	...	...	...	each	1 0	...
Under 4 cwts.	...	...	...	...	...	...	each	0 6	...
Calves	...	...	...	...	...	...	each	0 3	...
Horses and ponies	...	...	...	...	...	...	each	1 0	...
Pigs	...	...	...	...	...	...	each	0 3	...
Sheep	...	...	...	...	...	...	each	0 2	...
Lambs	...	...	...	...	...	...	each	0 1	...
Chalk	...	...	...	...	...	...	per ton	0 9	...
Cheese	...	...	...	...	...	...	per ton	1 6	...
Chestnuts	...	...	...	...	...	...	per ton	2 6	...
Cider	...	...	...	...	...	...	per tun	1 6	...
Clay viz.:—									
China clay or stone clay and fine do.	...	...	...	...	...	...	per ton	1 0	...
Pipe and fire clay	...	...	...	...	...	...	per ton	1 0	...
Common clay	...	...	...	...	...	...	per ton	0 2	...
Cochineal	...	...	...	...	...	...	per cwt.	1 0	...
Cocoa	...	...	...	...	...	...	per ton	1 8	...
Coffee	...	...	...	...	...	...	per ton	1 8	...
Cocoa nuts	...	...	...	...	...	...	per ton	1 8	...
Copper	...	...	...	...	...	...	per ton	2 0	...
Copper utensils for distilleries	...	...	...	...	...	...	per cwt.	0 3	...
Old	...	...	...	...	...	...	per ton	1 8	...
Ore	...	...	...	...	...	...	per ton	1 0	...
Copperas	...	...	...	...	...	...	per ton	1 6	...
Coral	...	...	...	...	...	...	per cwt.	1 0	...
Cordage	...	...	...	...	...	...	per ton	1 6	...
Corks	...	...	...	...	...	...	per ton	2 6	...
Cork-wood	...	...	...	...	...	...	per ton	2 6	...
Corn viz.:—									
Barley or bere	...	...	...	...	...	...	per quarter	0 2	...
Beans	...	...	...	...	...	...	per quarter	0 3	...
Indian corn	...	...	...	...	...	...	per quarter	0 2	...
Maize	...	...	...	...	...	...	per quarter	0 2	...
Malt	...	...	...	...	...	...	per quarter	0 2	...
Oats	...	...	...	...	...	...	per quarter	0 2	...
Pease	...	...	...	...	...	...	per quarter	0 3	...
Rye	...	...	...	...	...	...	per quarter	0 3	...
Wheat	...	...	...	...	...	...	per quarter	0 3	...

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								Rate.	
								s.	d.
Carrots	...	...	...	...	...	...	per ton	1	0
Crystal	...	...	...	...	...	...	per ton	2	0
Coke	...	...	...	...	...	...	per ton	0	6
Coals and patent fuel not discharged into railway waggons for conveyance to places beyond Inverness								0	6
Coals and patent fuel discharged into railway waggons for conveyance to places beyond Inverness								0	4
Cinders	...	...	...	...	...	...	per ton	0	4
Codilla flax	...	...	...	...	...	...	per ton	1	6
Cloth and all kinds of drapery haberdashery and carpeting goods								1	8
Cement	...	...	...	...	...	...	per ton	1	0
Coaches chaises gigs and other carriages:—									
Double-seated coach	...	...	...	...	...	...	each	5	0
Carriages with springs under 5 cwts.	...	...	...	...	...	...	each	2	6
Ditto ditto 5 cwts. and over	...	...	...	...	...	...	per cwt.	1	0
Other open carriages	...	...	...	...	...	...	each	2	6
Phaetons four wheels	...	...	...	...	...	...	each	2	0
Two-wheeled gigs and dog-carts	...	...	...	...	...	...	each	1	0
Carts and waggons with or without springs	...	...	...	...	...	...	each	2	6
Chimney cans common	...	...	...	...	...	...	each	0	0½
Chimney cans ornamental	...	...	...	...	...	...	each	0	1
Chinaware...	...	...	...	...	...	...	per ton	1	8
Cotton-wool	...	...	...	...	...	...	per ton	1	8
Cutch and Gambia	...	...	...	...	...	...	per ton	1	6
Creamine or manufactured fat	...	...	...	...	...	...	per ton	1	0
Dogs	...	...	...	...	...	...	each	0	3
Drugs and all merchandise for druggists	...	...	...	...	...	...	per ton	1	8
Dye stuffs and dye woods where not specially mentioned	...	...	...	...	...	...	per ton	1	6
Earthenware	...	...	...	...	...	...	per ton	1	6
Eggs	...	...	...	...	...	...	per ton	1	6
Elephants' teeth	...	...	...	...	...	...	per cwt.	1	0
Emery stones	...	...	...	...	...	...	per ton	2	0
Feathers	...	...	...	...	...	...	per cwt.	0	4
Felt of all kinds	...	...	...	...	...	...	per ton	1	6
Fire-clay pipes and retorts	...	...	...	...	...	...	per ton	1	0
Fire-clay brick	...	...	...	...	...	...	per ton	0	4
Fish:—									
Large cod or ling	..	...	...	...	...	...	per score	1	0
Garvies sprats or fresh herrings imported	...	...	...	...	...	...	per cran	0	3
Ditto ditto exported	...	...	...	...	...	...	per barrel	0	3
Haddocks codlings or any fresh fish not enumerated	...	...	...	...	...	...	per ton	1	3
Haddocks cod or ling or any other salted fish	...	...	...	...	...	...	per ton	1	8

								Rate.		A.D. 1911.
								s.	d.	
Fish—continued.										
Oysters and other shellfish	...	...	...	...	...	...	per ton	2	6	—
Salmon	...	...	...	...	...	...	per ton	2	0	
Salt herrings	...	...	...	...	...	...	per barrel	0	3	
Red herrings	...	...	...	...	...	...	per ton	1	6	
Fruit of all kinds not specially mentioned	...	...	...	...	...	...	per ton	1	6	
Flint stones	...	...	...	...	...	...	per ton	0	4	
Flower roots	...	...	...	...	...	...	per ton	2	0	
Furriers' waste	...	...	...	...	...	...	per ton	1	0	
Flax	...	...	...	...	...	...	per ton	2	0	
Flax manufactured	...	...	...	...	...	...	per ton	2	0	
Flour	...	...	...	...	...	...	per ton	1	0	
Furniture...	...	...	...	...	...	...	per ton	2	6	
Glass :—										
Plate	...	...	...	...	...	...	per ton	2	0	
Sheet	...	...	...	...	...	...	per ton	2	0	
Broken	...	...	...	...	...	...	per ton	1	0	
Glue	...	...	...	...	...	...	per ton	1	6	
Grapes	...	...	...	...	...	...	per ton	1	6	
Grease and smearing materials	...	...	...	...	...	...	per ton	1	0	
Grocery goods of all kinds where not specially mentioned	...	...	...	...	...	...	per ton	1	6	
Gunpowder dynamite and other explosives	...	...	...	...	...	...	per ton	6	0	
Guano and all kinds of artificial manure where not specially mentioned	...	...	...	...	...	...	per ton	1	0	
Hair	...	...	...	...	...	...	per ton	2	0	
Hardware	...	...	...	...	...	...	per ton	1	6	
Hats	...	...	...	...	...	...	per cwt.	0	3	
Hay	...	...	...	...	...	...	per ton	1	0	
Hemp	...	...	...	...	...	...	per ton	1	6	
Hides undressed	...	...	...	...	...	...	per ton	1	6	
Honey	...	...	...	...	...	...	per ton	2	0	
Hoops of wood	...	...	...	...	...	...	per ton	1	6	
Hops	...	...	...	...	...	...	per ton	1	6	
Horns	...	...	...	...	...	...	per ton	2	6	
Husbandry utensils and implements	...	...	...	...	...	...	per ton	2	0	
Ice	...	...	...	...	...	...	per ton	1	0	
Iron viz. :—										
Bar bolt and rod plate sheet hoops girdles nails wire forged ironwork and iron vessels in pieces	...	...	...	...	...	...	per ton	1	6	
Galvanised	...	...	...	...	...	...	per ton	1	6	
Wire netting	...	...	...	...	...	...	per ton	1	6	
New rails and railway chairs	...	...	...	...	...	...	per ton	1	6	

								Rate.	
								s.	d.
A.D. 1911.	Iron— <i>continued</i> .								
—	Made work including steam boilers whole or in pieces and grates and stoves &c. per ton							2	0
	Old iron including old rails and chairs per ton							0	6
	Ironmongery goods of all kinds not specially mentioned per ton							1	6
	Old or broken cast iron per ton							0	4
	Pig per ton							0	6
	Iron pipes per ton							1	0
	Ink per ton							1	8
	Ivory per cwt.							1	0
	Junk rope old per ton							1	0
	Kelp per ton							1	0
	Lard or fat per ton							1	6
	Lamp black per ton							1	8
	Lead per ton							1	3
	Black per ton							1	6
	Ore per ton							1	0
	Red and white per ton							1	6
	Shot per ton							1	8
	Leather per ton							1	8
	Lime per ton							0	4
	Loam per ton							1	0
	Locust beans per ton							1	0
	Machinery per ton							2	0
	Marble per ton							2	0
	Mats bass per ton							2	0
	Mill waste per ton							1	6
	Mohair yarn per ton							1	6
	Molassine meal per ton							1	0
	Moss litter per ton							1	0
	Motor cars each							5	0
	Manure common per ton							0	2
	Meal per ton							1	0
	Musical instruments per cwt.							0	3
	Oakum per ton							1	8
	Oils of all kinds not otherwise specified per ton							1	6
	Onions per ton							1	0
	Paints of all kinds not specially mentioned per ton							1	6
	Paper viz. writing printing hanging per ton							1	6
	Paper packing per ton							1	6
	Pelts per ton							1	6
	Pitch and asphalte per ton							1	0

							Rate.		A.D. 1911.
							s.	d.	
Plants of trees or shrubs	...	...	...	...	...	per ton	2	0	—
Plaster of Paris	...	...	...	...	...	per ton	2	0	
Pumice stones	...	...	...	...	...	per ton	2	8	
Potash	...	...	...	...	...	per ton	1	0	
Potatoes	...	...	...	...	...	per ton	0	6	
Peats	...	...	...	...	...	per ton	0	6	
Passengers' luggage above 2 cwts.	...	...	...	...	...	per ton	2	0	
Rags of all kinds where not specially mentioned	...	...	...	...	...	per ton	1	0	
Rape cotton or linseed cakes and other artificial	...	...	...	...	...	feeding			
stuffs	...	...	...	...	...	per ton	1	0	
Rice ground and unground	...	...	...	...	...	per ton	1	0	
Rosin	...	...	...	...	...	per ton	2	0	
Rubber tyres	...	...	...	...	...	per ton	1	6	
Rye and grass seeds	...	...	...	...	...	per ton	1	0	
Salt rock white and kainit	...	...	...	...	...	per ton	0	9	
Salt refined in packages	...	...	...	...	...	per ton	1	0	
Saltpetre	...	...	...	...	...	per ton	1	8	
Seeds of all kinds where not specially mentioned	...	...	...	...	...	per ton	1	6	
Skins:—									
Calf	...	...	...	...	...	per doz.	0	2	
Sheep	...	...	...	...	...	per doz.	0	2	
Deer	...	...	...	...	...	per doz.	1	0	
Kid	...	...	...	...	...	per doz.	0	2	
Lamb	...	...	...	...	...	per doz.	0	2	
Seal	...	...	...	...	...	per doz.	1	0	
Sheep dressed	...	...	...	...	...	per cwt.	0	2	
Hare and rabbit skins	...	...	...	...	...	per doz.	0	1	
Slag	...	...	...	...	...	per ton	0	9	
Slates	...	...	...	...	...	per ton	1	0	
Slate pencils and slabs	...	...	...	...	...	per ton	2	0	
Snuff	...	...	...	...	...	per ton	1	8	
Soap	...	...	...	...	...	per ton	1	6	
Spirits imported	...	...	...	...	...	per ton	1	8	
Spirits exported	...	...	...	...	...	per ton	1	0	
Stones viz.:—									
Road metal	...	...	...	...	...	per ton	0	2	
Rubble	...	...	...	...	...	per ton	0	2	
Hewn ashler	...	...	...	...	...	per ton	0	4	
Rough ashler	...	...	...	...	...	per ton	0	2	
Rubble causeway	...	...	...	...	...	per ton	0	2	
Causeway stones dressed	...	...	...	...	...	per ton	0	4	
Pavement flags	...	...	...	...	...	per ton	0	4	
Curb	...	...	...	...	...	per ton	0	4	

							Rate.	
							s.	d.
A.D. 1911.	Stones—continued.							
	Monuments rough or polished	...	...	...	...	per ton	2	0
	Scythe stones	...	...	...	...	per score	0	2
	Grind stones	...	...	...	...	each	0	2
	Mill stones common	...	...	...	...	per ton	2	6
	Burr stones	...	...	...	...	per ton	5	0
	Sand	...	...	...	...	per ton	0	4
	Sugar and syrup...	...	...	...	...	per ton	1	6
	Straw	...	...	...	...	per ton	0	6
	Steel	...	...	...	...	per ton	1	6
	Soda	...	...	...	...	per ton	1	0
	Tallow	...	...	...	...	per ton	1	0
	Tanners' waste	...	...	...	...	per ton	1	0
	Tar Archangel	...	...	...	...	per ton	1	6
	Tar coal...	...	...	...	...	per ton	1	0
	Tares	...	...	...	...	per ton	1	6
	Tea	...	...	...	...	per ton	2	6
	Tin of all kinds	...	...	...	...	per ton	1	6
	Tobacco	...	...	...	...	per ton	2	6
	Tortoiseshell	...	...	...	...	per cwt.	2	0
	Tow	...	...	...	...	per ton	1	6
	Toys	...	...	...	...	per ton	2	0
	Treacle feeding	...	...	...	...	per ton	1	0
	Trenails	...	...	...	...	per ton	2	0
	Twine and twisted yarn	...	...	...	...	per ton	1	6
	Tiles	...	...	...	...	per 1000	1	0
	Turnips	...	...	...	...	per ton	0	4
	Types metal and stereoplate	...	...	...	...	per ton	2	6
	Vases and sculptured marble	...	...	...	...	per ton	2	6
	Vitriol and acids...	...	...	...	...	per ton	1	6
	Water aerated	...	...	...	...	per ton	1	0
	Wine	...	...	...	...	per ton	1	8
	Whalebone dressed or undressed	...	...	...	...	per ton	2	0
	Whiting	...	...	...	...	per ton	0	9
	Wood:—							
	Battens	...	...	...	...	per 50 cubic feet	1	0
	Boards oak or wainscot	...	...	...	...	per 40 cubic feet	1	6
	Boards paling	...	...	...	...	per 120 feet	0	9
	Door windows and other framed goods for building							
	purposes	...	...	...	...	per ton	2	0
	Firewood	...	...	...	...	per fathom of 216 cubic feet	3	0
	Handspikes	...	...	...	...	per 120	0	9
	Lathwood in billets	...	...	...	...	per fathom of 216 cubic feet	3	0
	Mast yards or bowsprits	...	...	...	...	per 50 cubic feet	1	2

					Rate.		A.D. 1911.
					s.	d.	
Wood— <i>continued</i> .							
Oak planks	...	...	...	per 40 cubic feet	1	6	—
Oars and oar rafters	...	...	...	per 120 pieces	1	6	
Rickers boat hooks	...	...	...	per 120 pieces	1	6	
Oak logs	...	...	...	per 50 cubic feet	1	6	
Pine and fir logs	...	...	...	per 50 cubic feet	0	9	
Sleepers—railway and tram	...	...	...	per 50 cubic feet	0	9	
Ufers	...	...	...	per 50 cubic feet	0	9	
Wainscot logs	...	...	...	per 50 cubic feet	1	6	
Barwood	...	...	...	per 40 cubic feet	2	0	
Boxwood	...	...	...	per 40 cubic feet	2	0	
Brazilwood	...	...	...	per 40 cubic feet	2	0	
Canewood	...	...	...	per 40 cubic feet	2	0	
Ebony	...	...	...	per 40 cubic feet	2	0	
Fustic	...	...	...	per 40 cubic feet	2	0	
Lignum vitæ	...	...	...	per 40 cubic feet	2	0	
Logwood	...	...	...	per 40 cubic feet	2	0	
Mahogany	...	...	...	per 40 cubic feet	2	0	
Nicaragua wood	...	...	...	per 40 cubic feet	2	0	
Redwood	...	...	...	per 40 cubic feet	2	0	
Sassafras	...	...	...	per 40 cubic feet	2	0	
Rosewood	...	...	...	per 40 cubic feet	2	0	
Hardwood not enumerated	...	...	...	per 50 cubic feet	1	6	
Planks and deals fir	...	...	...	per 50 cubic feet	0	9	
Planks hardwood	...	...	...	per 50 cubic feet	1	6	
Cartwheel spokes	...	...	...	per 60 pieces	0	4	
Pit props 6 feet long 3 inches diameter small							
ends	...	...	...	per dozen	0	0½	
Pit props 6 feet long 5 inches diameter small							
ends	...	...	...	per dozen	0	1	
Cabers	...	...	...	per dozen	0	1	
Oak staves and headings	...	...	...	per 50 cubic feet	1	2	
Barrel staves and headings fir and white-wood	...	...	...	per 50 cubic feet	0	9	
Wool	...	...	...	per ton	1	6	
Yarn of all kinds where not specially mentioned	...	...	...	per ton	2	6	
Yeast	...	...	...	per ton	1	6	
All other articles and goods not specially specified in							
above schedule to pay at the rate of				per ton	1	6	
Small packages not weighing twenty-eight pounds to be reckoned at							
that weight and to be charged one penny No rate or charge to be							
less than one penny.							

A.D. 1911.

SCHEDULE E.

1. RATES FOR CARGO AND TRADING VESSELS AND PLEASURE YACHTS.

	s.	d.
For all vessels from or to any port in Great Britain and Ireland to or from the harbour per register ton	0	4½
For all pleasure yachts not carrying goods or passengers for hire per register ton	0	6
For all vessels to or from foreign ports and all vessels from a home port whose cargo was shipped abroad...per register ton	0	5
Provided that in the event of a vessel from a foreign port discharging less than half her cargo at the harbour she shall pay half rates and in the event of her discharging more than a half but less than a whole cargo she shall pay such proportion of the above rates on her registered tonnage as the cargo discharged bears to her full cargo.		
For all regular trading steamers discharging or loading part cargo only at the harbour and during the same voyage discharging or loading the other portion of the cargo at other ports in Great Britain per register ton	0	2
For all vessels paying the above rates and remaining in the harbour more than twenty-one days ... per register ton	0	1½
For every week or part thereof after the said twenty-one days per register ton	0	1½
(Time of such vessel while on slip not to count).		

2. RATES FOR FISHING VESSELS.

	£	s.	d.
For all fishing boats under 30 ft. keel on each occasion of entering the harbour	0	1	0
For steam or motor drifters or decked sail fishing boats not engaged in regular fishing out of the harbour on each occasion of entering the harbour	1	0	0
For every week or part thereof after the first week except when on slip	0	10	0
For steam or motor drifter coming into the harbour for coal or stores—			
For the first 48 hours	0	5	0
For every 24 hours or part thereof after	0	2	6
For steam or motor drifters or sail fishing boats engaged in regular fishing out of the harbour—on each occasion of entering the harbour	0	4	0

3 RATES FOR STEAM OR MOTOR DRIFTERS OR SAIL FISHING BOATS LAID A.D. 1911.
UP IN BOAT HARBOUR OR AT ANY OF THE QUAYS OF THE TRUSTEES.

	Rate.
	£ s. d.
For first four weeks or any shorter period	5 0 0
For every succeeding week or part of a week	0 10 0

SCHEDULE F.

RATES PAYABLE FOR WEIGHING MACHINES AND MACHINES USED FOR
LOADING AND UNLOADING.

	Rate.
	s. d.
Coals per ton	0 1
Cinders per 100 bushels	0 1½
Lime shells per 100 bushels	0 1½
Other goods or articles per ton	0 1

SCHEDULE G.

PILOTAGE IN OR OUT.

	s. d.
Vessels of fifty tons register and under	7 0
Vessels above fifty tons register seven shillings for the first fifty tons and one penny per ton for every ton above.	

NOTE.—The Rates specified in this Schedule G only apply to the Pilotage limits of the Harbour as set forth in Section 22 of the Order of 1883.

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